

SENATE No. 149

The Commonwealth of Massachusetts

PRESENTED BY:

Jason M. Lewis

To the Honorable Senate and House of Representatives of the Commonwealth of Massachusetts in General Court assembled:

The undersigned legislators and/or citizens respectfully petition for the adoption of the accompanying bill:

An Act to enhance standards of care for those with autism and intellectual and developmental disabilities.

PETITION OF:

NAME:	DISTRICT/ADDRESS:	
<i>Jason M. Lewis</i>	<i>Fifth Middlesex</i>	
<i>James K. Hawkins</i>	<i>2nd Bristol</i>	<i>2/12/2025</i>
<i>John F. Keenan</i>	<i>Norfolk and Plymouth</i>	<i>2/21/2025</i>
<i>Manny Cruz</i>	<i>7th Essex</i>	<i>2/27/2025</i>
<i>Michael D. Brady</i>	<i>Second Plymouth and Norfolk</i>	<i>3/4/2025</i>
<i>James B. Eldridge</i>	<i>Middlesex and Worcester</i>	<i>3/4/2025</i>
<i>Patrick M. O'Connor</i>	<i>First Plymouth and Norfolk</i>	<i>3/21/2025</i>
<i>Michael O. Moore</i>	<i>Second Worcester</i>	<i>3/21/2025</i>
<i>Bruce E. Tarr</i>	<i>First Essex and Middlesex</i>	<i>4/3/2025</i>
<i>Bradley H. Jones, Jr.</i>	<i>20th Middlesex</i>	<i>4/8/2025</i>
<i>Mike Connolly</i>	<i>26th Middlesex</i>	<i>4/8/2025</i>
<i>Paul R. Feeney</i>	<i>Bristol and Norfolk</i>	<i>4/29/2025</i>
<i>Pavel M. Payano</i>	<i>First Essex</i>	<i>7/7/2025</i>

SENATE No. 149

By Mr. Lewis, a petition (accompanied by bill, Senate, No. 149) of Jason M. Lewis, James K. Hawkins, John F. Keenan, Manny Cruz and other members of the General Court for legislation to increase current medical providers' knowledge about autism in order to improve treatment. Children, Families and Persons with Disabilities.

[SIMILAR MATTER FILED IN PREVIOUS SESSION
SEE SENATE, NO. 1401 OF 2023-2024.]

The Commonwealth of Massachusetts

In the One Hundred and Ninety-Fourth General Court
(2025-2026)

An Act to enhance standards of care for those with autism and intellectual and developmental disabilities.

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

1 Notwithstanding any general or special law to the contrary, within one year of the date of
2 enactment, the executive office of health and human services shall create and maintain an
3 integrated state plan to develop training and education as well as standards of care by appropriate
4 healthcare providers related to the diagnosis, treatment, and care of patients with intellectual and
5 developmental disabilities, including autism spectrum disorders and those with intersecting
6 marginalized identities. The plan should include implementation steps and recommendations
7 from the advisory committee on intellectual and developmental disabilities that includes, but is
8 not limited to: (1) continuing education requirements for applicable healthcare providers related
9 to diagnosis, treatment, and care of patients with intellectual and developmental disabilities,

including autism spectrum disorders and those with intersecting marginalized identities, inclusive of the physical and psychological impacts of emergency department boarding and strategies to support patients and families when boarding is unavoidable; (2) implementation of a strategy for the adoption of standards for improving assessment and diagnosis of intellectual and developmental disabilities, including autism spectrum disorders and those with intersecting marginalized identities, for patients during routine outpatient primary care examinations; and (3) coordination with applicable state licensure boards, as recommended by the advisory committee on intellectual and developmental disabilities, the adoption of appropriate continuing education requirements related to intellectual and developmental disabilities, including autism spectrum disorders and those with intersecting marginalized identities, as part of licensure renewals.

Within six months of the date of enactment, there is hereby established an advisory committee on intellectual and developmental disabilities, including autism spectrum disorders and those with intersecting marginalized identities. Said advisory committee shall be comprised of the following experts: (i) a designee of the secretary of health and human services; (ii) a designee of the commissioner of public health; (iii) two health care providers with expertise in the diagnosis, treatment, and care of patients with intellectual and developmental disabilities, including autism spectrum disorders and those with intersecting marginalized identities; (iv) two patient advocates or family members of those with intellectual and developmental disabilities, including autism spectrum disorders and those with intersecting marginalized identities; and (v) five statewide trade organizations that include the Arc of Massachusetts, the Massachusetts Health and Hospital Association, the Massachusetts Medical Society, and Massachusetts Psychiatric Society, and the Massachusetts Psychological Association. The advisory council shall develop recommendations for statewide standards for healthcare professionals regarding

33 diagnosis, treatment, and care for patients with intellectual and developmental disabilities,
34 including but not limited to, autism spectrum disorders and those with intersecting marginalized
35 identities. Said standards shall include recommendations for training of healthcare providers,
36 including but not limited to, physicians, psychologists, psychiatrists, physician assistants,
37 registered nurses, and advanced practice registered nurses.